

BEFORE Placeholder

AFTER

Contract Clauses — Resilience, DR & Service Continuity (Clause Library)

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Effective date: _____

Note: Select clauses proportionate to tier and whether the supplier supports a critical business service. Keep obligations service-appropriate.

A) Availability and continuity (baseline)

A1 — Service continuity obligation Supplier shall maintain resilience measures appropriate to the Services to support continuity of service delivery and timely restoration following outages or incidents.

A2 — Dependencies Supplier shall disclose material dependencies relevant to service availability (including material sub-processors) and shall manage these dependencies in a manner consistent with the obligations in this Agreement.

B) RTO/RPO / restoration expectations (Critical recommended)

B1 — Restoration expectations For Services supporting a critical business service, Supplier shall provide documented service restoration expectations. Where applicable, Supplier shall commit to:

- Recovery Time Objective (RTO): _____

- Recovery Point Objective (RPO): _____

B2 — Limitations Supplier shall disclose any limitations to the stated restoration expectations (e.g., excluded components, regions, or dependencies).

(If the supplier will not commit to RTO/RPO, use “service restoration time targets” wording instead.)

C) Backup, restore and DR (where supplier stores data or hosts service)

C1 — Backups Supplier shall maintain backups appropriate to the Services and the data processed/stored, including backup frequency and retention sufficient to support restoration.

C2 — Restore capability Supplier shall maintain the ability to restore the Services and/or Customer data following data loss events, consistent with the Service restoration expectations.

C3 — DR / recovery testing Supplier shall test recovery/DR procedures at a frequency appropriate to the Services and shall provide a summary of the most recent test on request (high-level summary acceptable).

Critical default frequency (if negotiated):

- At least annually for critical service scope.

C4 — Corrective actions Where testing identifies material deficiencies, Supplier shall implement corrective actions within a reasonable timeframe and provide status updates on request.

D) Outage communications (align to incident comms)

D1 — Outage notification Supplier shall notify Customer without undue delay of outages materially affecting the Services used by Customer.

D2 — Update cadence For material outages impacting critical services, Supplier shall provide updates at least daily (or at an agreed cadence appropriate to severity) until service stabilisation.

D3 — Post-outage report For material outages, Supplier shall provide a post-outage report (summary/RCA) including timeline, root cause, impact, and corrective actions with dates.

E) Business continuity and exit readiness (Critical recommended)

E1 — Continuity plans Supplier shall maintain continuity and recovery plans appropriate to the Services and provide a high-level summary on request.

E2 — Exit/transition support Where the Services are critical, Supplier shall provide reasonable transition support on termination/expiry to support continuity during supplier change.

F) Tier guidance (selection)

Critical (Tier 1) recommended minimum set:

- A1–A2
- B1–B2 (where service supports critical business service)
- C1–C4 (where supplier stores data or hosts service)
- D1–D3
- E1 (and E2 where critical dependency exists)

Important (Tier 2) proportionate set:

- A1
- C1–C2 where data is stored
- D1–D2 for material outages (RCA optional)

Low (Tier 3) lightweight set:

- A1 (optional) + D1 (optional) depending on scope
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G) Practical fallback positions (if supplier pushes back)

If supplier won't commit to RTO/RPO:

- require "service restoration time targets" and "best efforts to restore" language, plus mandatory communications and testing summaries.

If supplier won't provide DR test summaries:

- require at minimum an attestation that DR/restore testing is performed with cadence, and require full summary upon material incident/outage.

If supplier claims "shared responsibility" prevents continuity commitments:

- require clarity on which components Supplier controls, and tie obligations to those components and to communications/cooperation.